

****12.01.2024****

****Sanction for Violation of GDPR****

Based on the cooperation mechanisms provided by Regulation (EU) 2016/679, the National Authority for the Supervision of Personal Data Processing has completed an investigation into the operator Alior Bank SA, through its branch in Romania - Alior Bank SA Warsaw Bucharest Branch, during which it found violations of the provisions of Article 5 paragraph (1) letters a) and b) and Article 6 of Regulation (EU) No. 2016/679.

As such, the operator was sanctioned with an administrative fine of 84,491.7 lei (equivalent to 17,000 EURO).

The investigation was initiated following complaints submitted by a data subject who reported a possible violation of the provisions of Regulation (EU) No. 2016/679 by the operator. Thus, the petitioner (former client) complained that the operator sent him unsolicited electronic correspondence, both to his email address and via SMS, despite having previously requested the deletion of all his personal data, a fact that was confirmed by the operator through the communication of the termination of the banking contracts concluded, as well as through the closure of the related bank accounts. Additionally, the petitioner also reported that there had previously been instances where the operator sent commercial correspondence via email, even though he had exercised his right to object. During the investigation conducted by the National Authority for the Supervision of Personal Data Processing, in consultation with the data protection authority in Poland, it was found that Alior Bank SA Warsaw Bucharest Branch held a series of applications and communication systems for clients. The IT system of Alior Bank SA Warsaw Bucharest Branch was integrated into the centralized system of Alior Bank SA Warsaw based in Poland, which implemented, from an IT perspective, the methodology for verifying the database. As such, the messages communicated to clients after the termination of the contractual relationship with the bank were sent by the technical department of Alior Bank SA Warsaw in Poland, according to the requirements communicated by the Alior Bank SA branch in Bucharest.

Thus, it was found that the bank, after the termination of the contractual relationship with clients, continued to monitor their activities and send messages regarding certain operations.

As such, it was found that the operator processed the personal data (such as email address and phone number) of individuals who had concluded a contractual relationship with the bank for a purpose incompatible with the one for which the data were initially collected, violating the provisions of Article 5 paragraph (1) letters a) and b) and Article 6 of Regulation (EU) No. 2016/679.

In this context, considering the cross-border implications of the situation, Alior Bank SA, through its branch in Romania - Alior Bank SA Warsaw Bucharest Branch, was sanctioned by a Decision of the National Authority for the Supervision of Personal Data Processing with a fine, according to the powers established by Regulation (EU) No. 2016/679 and Law No. 102/2005, republished.

At the same time, the National Authority for the Supervision of Personal Data Processing also applied a corrective measure requiring the operator to regularly monitor compliance with the principles and rules provided by Articles 5 and 6 of Regulation (EU) No. 2016/679, to avoid the illegal processing of personal data of data subjects, and in the event that reconfiguration of certain systems or applications used in the processing of personal data is necessary, Alior Bank SA Warsaw Bucharest Branch must inform Alior Bank SA in Poland of these aspects, for the proper implementation of the principles provided by Regulation (EU) No. 2016/679.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****